

**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar  
Honorable Nancy L. Fineman  
400 County Center, Redwood City  
Department 4, Courtroom 4C

Tuesday July 7, 2026

**If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).**

**Failure to comply with notice as outlined will result in no oral presentation.**

**Notice of Appearance and Courtesy Copies**

1. Email [Dept4@SanMateoCourt.org](mailto:Dept4@SanMateoCourt.org) before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5104 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:  
[LawAndMotionReplyBriefs@SanMateoCourt.org](mailto:LawAndMotionReplyBriefs@SanMateoCourt.org)

**Day of Hearing**

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

**Remote Appearance Zoom Information**

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 624 8977 Password: 230279

**TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.**

2:00 PM

LINE 1

24-CIV-06068      JOHN DOE VS. LIOR ZOREA, ESQ, ET AL.

JOHN DOE  
LIOR ZOREA

PRO SE  
ROBERT M. BLUM

---

DEFENDANTS LIOR ZOREA'S, GREGORY DESCHENES', AND NIXON PEABODY LLP'S MOTION FOR REASONABLE ATTORNEYS' FEES AND COSTS

**TENTATIVE RULING:**

For the reasons stated below, defendants Lior Zorea's, Gregory Deschenes', and Nixon Peabody, LLP's (collectively, Defendants) unopposed Motion for Reasonable Attorney's Fees and Costs, filed April 6, 2026, is GRANTED.

Plaintiff has not opposed this motion.

Background

On November 24, 2025, Defendants filed a Special Motion to Strike portions of plaintiff John Doe's Third Amended Complaint ("TAC"), pursuant to Code of Civil Procedure section 425.16 ("anti-SLAPP" motion). On March 26, 2026, this court granted Defendants' anti-SLAPP motion. (March 26, 2026 Order.)

By this Motion, Defendants seek to recover their reasonable attorney's fees of \$7,200.00 and costs in the amount of \$400.25 incurred on their anti-SLAPP motion filed on November 24, 2025.

Application

The unopposed Motion is GRANTED.

Pursuant to Code of Civil Procedure section 425.16, subdivision (c)(1), a defendant who files a successful motion to strike is entitled to a mandatory award of attorney's fees. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) Here, the Defendants all prevailed on their anti-SLAPP motion, filed November 24, 2025. Accordingly, Defendants are entitled to recover their reasonable attorney's fees and costs. Defendants are also entitled to recover their attorney's fees reasonably incurred on their fee motion. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.)

The motion is timely. (Cal. Rules of Court, rule 3.1702(b)(1).)

The court finds the fees reasonable. Attorney fees are ordinarily determined by the court pursuant to the "lodestar" method. Under the lodestar, a "reasonable" hourly rate is the prevailing rate charged by an attorney of similar skill and experience in the relevant community. (*PLCM Group,*

---

*Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095 (*PLCM Group*); *Ketchum v. Moses, supra*, 24 Cal.4th at p. 1132; *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157.) This court may adjust the lodestar amount based on various factors specific to the case to fix the attorney fees at fair market value for the services provided. (*PLCM Group, supra*, 22 Cal.4th at pp. 1095-1096.) The factors include: “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (*Ketchum, supra*, 24 Cal.4th at p. 1132; *Holguin v. DISH Network LLC* (2014) 229 Cal.App.4th 1310, 1332.) Defendants do not request a lodestar adjustment. In considering the lodestar factors, a trial court must “focus on providing an award of attorney fees reasonably designed to fully compensate [the prevailing party] attorneys for the services provided.” (*Horsford v. Board of Trustees* (2005) 132 Cal.App.4th 359, 395.)

This court may use its own experience to determine the value of attorneys’ fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 [“The value of attorney's services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value.”]; *Reynolds v. Ford Motor Company* (2020) 47 Cal.App.5th 1105, 1113-14 [“The trial court acted well within its discretion in using ‘the prevailing market value in the community for similar legal services’ relying on its personal knowledge and familiarity with the area legal services, as the ‘touchstone’ for determination” of the reasonable hourly rates.” (citations omitted)]). This court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys’ fees and costs frequently during her time as a judicial officer. This court is the single assigned judge.

The court finds Aldo E. Ibarra’s and Connor C. McNamara’s rates reasonable. Ibarra requests \$450.00 per hour and has been an attorney since 2010; McNamara requests \$450.00 per hour and has been an attorney since 2017. Defendants refer to the Laffey Matrix. The court is familiar with the use of the Laffey index which may be used by the trial court. (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 702.) Under the Laffey Matrix, Ibarra’s hourly rate is as high as \$1,036.00 per hour and McNamara’s rate is as high as \$917.00 per hour. They are only claiming hourly rates of \$450 per hour for this work. Based upon this court’s experience and the Laffey Matrix, the court finds the hourly rate of \$450 for both attorneys reasonable.

The court finds the work performed reasonable. Defendants request compensation for sixteen (16) hours of work. (Ibarra Decl., ¶¶ 4, 9) They state that they may request further fees for reviewing the opposition, drafting a reply, and appearing at the hearing. (*Id.*, ¶ 12.) The billing records have been reviewed to make sure that Defendants are only requesting time spent on the anti-SLAPP motion and not on any of the other motions being brought during the same time period. (*Id.*, ¶ 4, fn. 1.) The court in reviewing the tasks set forth in paragraph 4 of Ibarra’s declaration finds the time spent on each task reasonable and the collective amount of sixteen (16) hours reasonable for an anti-SLAPP motion, which includes appearing at the hearing. Therefore, the court finds that an attorneys’ fee award of \$7,200.00 reasonable under the circumstances.

The Court finds the costs of \$400.25 reasonable and statutorily required to be awarded.

---

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

---

2:00 PM

LINE 2

24-CIV-07699

NINA BOGDANOFF, ON BEHALF OF HERSELF AND ALL OTHERS SIMILARLY SITUATED VS  
LIFT ENRICHMENT, INC.

NINA BOGDANOFF, ON BEHALF OF HERSELF AND ALL OTHERS SIMILARLY SITUATED  
LIFT ENRICHMENT, INC.      LEONARD EMMA  
MARYAM MALEKI

---

PLAINTIFF'S MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

CONTINUED FROM 6/9/2026 AND 6/16/2026 AT DEFENDANT'S REQUEST

**TENTATIVE RULING:**

The court repeats the tentative ruling posted for the June 9, 2026 hearing. Defendant contests the tentative ruling.

Plaintiff Nina Bogdanoff's Motion for Leave to File a Second Amended Complaint is GRANTED.

In this case, on December 6, 2024, plaintiff Bogdanoff filed a wage and hour class action complaint against defendant Lift Enrichment, Inc., which included an overtime claim. On February 10, 2025, plaintiff filed a first amended complaint, which added a Private Attorney General Act (PAGA) claim and deleted the overtime claim because she did not have standing to assert it. On March 20, 2025, defendant answered the first amended complaint. Now, plaintiff seeks to file a second amended complaint to add two individuals, Tyler Fleeman and Nicky Grier-Fairley, as class and PAGA representatives and to add a cause of action for failure to pay overtime. Defendant opposes arguing that the proposed new plaintiffs did not submit their PAGA notices until after the filing of the complaint and thus they cannot claim the benefit of the December 6, 2024 filing date.

The motion was originally scheduled to be heard on May 6, 2026, but the court had question on whether the two new proposed plaintiff could revive a claim that was originally pled in the original complaint but then omitted from the operative pleading. The parties submitted supplemental briefing.

Public policy considerations favor the use of the court's discretion to grant a party's request for leave to amend a pleading, as reflected in California case law. For example, our Supreme Court has stated that "In the matter of amending pleadings, this court has always counseled and sanctioned great liberality. No discussion upon so plain a proposition is necessary." (*Norton v. Bassett* (1910) 158 Cal. 425, 426–27.)

Accordingly, in deciding that the court below had abused its discretion in denying such a request, the Court of Appeal later explained that:

---

If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.

(*Morgan v. Superior Ct. of Cal. in & for Los Angeles County* (1959) 172 Cal.App.2d 527, 530 (collecting citations).) Recently, two different Courts of Appeal have reversed a trial court who refused leave to amend after a demurrer, even where it appeared doubtful that plaintiff could state a cause of action. (*Black v. Los Angeles County Metropolitan Transportation Authority* (2025) 116 Cal.App.5th 677; *Sproul v. Vallee* (2025) 116 Cal.App.5th 285.) The same public policy considerations apply to this motion to amend.

In this case, both parties agree that the law liberally grants motions to amend, but disagree on whether legally the new proposed plaintiffs may join this action and obtain the benefit of Bogdanoff's PAGA notice, which was much earlier than the date of Fleeman's and Grier-Fairley's PAGA notice.

As to the court's question, the omission of the overtime claim in the amended complaint does not operate as a bar to reviving the cause of action because the dismissal is without prejudice. (*Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1142-1143.) Thus, the fact that the overtime complaint was omitted from the amended complaint does not by itself bar the revival of the claim.

A noted practice guide explains the requirements for a complaint to relate back. "For an amended complaint to relate back to the original complaint as to parties named in it by their true names, it must:

- — be based on the 'same general set of facts' as the original; and
- — seek recovery against the same defendants for the 'same injuries'; and
- — refer to the 'same incident'—i.e., the 'same accident' caused by the 'same offending instrumentality.' [*Barrington v. A. H. Robins Co.* (1985) 39 C3d 146, 150, 216 CR 405, 407; *Norgart v. Upjohn Co.* (1999) 21 C4th 383, 408-409, 87 CR2d 453, 471-472; *Fix the City, Inc. v. City of Los Angeles* (2024) 100 CA5th 363, 374, 319 CR3d 119, 126; see *Pointe San Diego Residential Comm., L.P. v. Procopio, Cory, Hargreaves & Savitch, LLP* (2011) 195 CA4th 265, 277, 125 CR3d 540, 550—'critical inquiry is whether the defendant had adequate notice of the claim based on the original pleading,' and 'in applying the relation-back analysis, courts should consider the strong policy in this state that cases should be decided on their merits' (internal quotes omitted); *Hutcheson v. Sup.Ct. (UBS Fin'l Services, Inc.)* (2022) 74 CA5th 932, 940, 290 CR3d 60, 66]"

(*Cal. Prac. Guide: Civ. Proc. Before Trial* (TRG, June 2026 update) § 6:735 (Rutter Guide).)

"It is the sameness of the facts rather than the rights or obligations arising from those facts that is determinative. Thus, amendments alleging a new theory of liability against the defendant relate

---

back to the original complaint, so long as based on the same set facts [sic] previously alleged. [*Amaral v. Cintas Corp. No. 2* (2008) 163 CA4th 1157, 1199-1200, 78 CR3d 572, 606].” (Rutter Guide, *supra*, §6:736.)

“But a new plaintiff cannot be joined after the statute of limitations has run where plaintiff seeks to enforce an independent right or to impose greater liability upon the defendant. In such cases, the amended complaint does not relate back to the filing of the original. [*Bartalo v. Sup.Ct. (Rosman)* (1975) 51 CA3d 526, 533, 124 CR 370, 374; *Quiroz v. Seventh Ave. Ctr.* (2006) 140 CA4th 1256, 1278, 45 CR3d 222, 238 (citing text)]” (Rutter Guide, *supra*, § 6:755.)

In this case, defendants argues that *Hargrove v. Legacy Healthcare, Inc.* (2022) 80 Cal.App.5th 782 (*Hargrove*) bars plaintiff’s second amended complaint, but *Hargrove* supports amendment. The *Hargrove* court following *Hutcheson v. Superior Court* (2022) 74 Cal.App.5th 932,939-940, held a new plaintiff “may substitute into this action, and her PAGA claim may relate back to the original complaint if she meets PAGA’s prerequisites (standing, notice, & statute of limitations) and the amended complaint is able to relate back to the original complaint (i.e., it rests on the same general set of facts, involves the same injury, & involves the same cause of injury).” (*Hargrove*, at p. 791.) The reason that the new plaintiff could not substitute into the action in *Hargrove* was because she did not work at the defendant company during the same time period as the original plaintiff and thus did not “rest on the same general set of facts or involve the same injury.” (*Id.* at p. 793.) In this case, in contrast as alleged, all three plaintiffs were employed by defendants during all times relevant to the complaint. (SAC, ¶¶ 1-3.)

The allegations of the FAC and SAC arises from the same set of facts and seeks recovery against defendants for the same injuries arising from defendants’ employment policies and practices. The FAC alleges that “Plaintiffs and Class Members were not properly paid for all hours that they spent working” and “Defendants failed to pay Plaintiff and Class Members for all hours worked.” (FAC, ¶¶ 13, 18; see also ¶¶ 6, 26(4), 62, Prayer (5), all referring to failure to pay for “all hours worked”.) These allegations in the FAC were sufficient to put defendants on notice that they should prepare a defense based on an alleged failure to pay all hours spent working.

The case of *Estrada v. Royalty Carpet Mills, Inc.* (2022) 76 Cal.App.5th 685 (*Estrada*) is instructive. In *Estrada*, plaintiffs sued a company which had various facilities, three of which were relevant to the lawsuit. (*Id.*, at p. 698.) There were two original named plaintiffs, each of whom was from a different facility, and they sought leave to amend their SAC to add 11 new named plaintiffs, some of whom worked at the third facility, as well as an allegation that the third facility “had a unique policy that prevented employees from leaving the facility during meal periods.” (*Id.* at p. 699.)

The *Estrada* court first found that the original named plaintiffs’ proposed class covered employees from the third facility, and that the proposed class in the TAC “was substantially the same as the SAC.” (*Estrada, supra* 76 Cal.App.5th at p. 717.) The court then found as follows as to the new claim:

---

[T]he Porterville meal period claim alleged in the TAC is based in the same facts, injury, and instrumentality as the SAC's meal period claims: Royalty failed to provide its employees at Dyer, Derian, and Porterville with proper meal periods and failed to provide premium pay under section § 226.7. The exact nature of the noncompliant meal periods at Dyer and Derian (untimely meal periods) was different than Porterville (on-premises meals). But these two theories are still grounded in plaintiffs' overall allegations that Royalty was not providing its employees at the three facilities with compliant meal periods and was not providing premium pay over the same period.

(*Estrada*, *supra* 76 Cal.App.5th at p. 718.) Similarly, here, the proposed SAC's overtime claim is grounded in plaintiff's overall claim that defendants failed to properly pay Plaintiff and Class Members for all hours spent working. As the *Estrada* court held, "[t]here was sufficient information in the SAC 'to permit [the defendant] to gather and preserve the relevant materials and begin to conduct discovery and prepare a defense to the claims that were later refined and augmented in the amended complaints.' " (*Id.* at 718-719 [citing *Pointe San Diego Residential Community, L.P. v. Procopio, Cory, Hargreaves & Savitch, LLP* (2011) 195 Cal.App.4th 265, 278.]

As for the proposed plaintiffs, the *Estrada* court found that "[s]ince the on-premises meal policy claim in the TAC relates back to the SAC, it was permissible for plaintiffs to amend the SAC and add Porterville employees with standing to bring it." (*Estrada*, *supra* 76 Cal.App.5th at p.719.)

Regarding the PAGA claims, both proposed plaintiffs fell within the definition of the class as stated in the FAC, and both gave the LWDA notice of their claims prior to the filing of this motion, therefore they have exhausted administrative remedies and their claims relate back.

*Hutcheson v. Superior Court* (2022) 74 Cal.App.5th 932 (*Hutcheson*), which defendants attempt to distinguish, also supports amendment. In *Hutcheson*, an employee sued his employer seeking PAGA remedies on behalf of aggrieved employees, and a second employee sued the same employer under PAGA about a year later. (*Hutcheson* at 936-937.) The employee who filed the second lawsuit sought to intervene in the first employee's lawsuit and replace him, but the parties disagreed over whether the second employee's claim would relate back to the time of filing of the first lawsuit. (*Id.* at p. 937.)

The court found that "[a]t the time [the first employee] filed his original complaint, in February 2018, [the second employee] met the standing requirements for an aggrieved employee under section 2699, subdivision (c). That is because [the second employee] was a former employee of UBS, and the alleged violations had also been committed against him." (*Hutcheson*, *supra*, 71 Cal.App.5th at p. 941.) The court concluded that "[t]he substitution of [the second employee] for [the first employee] does not expand the scope of the original complaint filed by [the first employee]." (*Ibid.*)

Here, the FAC defined the class as "[a]ll persons employed by Defendants in the State of California in a nonexempt position who performed work for Defendants at any time within four years prior to the date of the filing of this Complaint." (FAC, ¶ 24.) The proposed SAC alleges

---



as to both proposed plaintiffs: “During all times relevant to this Complaint, Plaintiff was employed by Defendants as a non-exempt hourly employee.” (Proposed SAC, ¶¶ 1-3.) As in *Hutcheson*, the proposed plaintiffs therefore “stood to recover civil penalties if [Plaintiff Bogdanoff]’s case were proved.” (*Hutcheson, supra*, at 941.) And as in *Hutcheson*, both proposed plaintiffs here gave the LWDA notice well before the filing of this motion and the proposed SAC. (See Proposed SAC, ¶¶ 13-14.)

Since the addition of the overtime claim and the proposed plaintiffs do not improperly expand the scope or nature of the claims, there is no prejudice as the law defines it by the filing of the proposed SAC. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 489 [change in legal theory not prejudice]; Rutter Guide, *supra*, § 6:656 *et seq.*) Further, the filing of this motion was not untimely so as to cause prejudice to defendants. Plaintiff filed her initial complaint on December 6, 2024 and her FAC on February 10, 2025. The case was then stayed from March 20, 2025 to September 5, 2025 based on defendants’ request for an early evaluation conference, and proposed Plaintiffs submitted PAGA notice in August and September 2025, respectively. Plaintiff informed defendants of her desire to amend the FAC and add the proposed plaintiffs and overtime claim by December 2025. (Declaration of Leonard Emma ISO Leave to Amend, filed Feb. 27, 2026, ¶ 6.)

The amended complaint is not deemed filed. It shall be filed and served within five court days of notice of entry of order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

---

2:00 PM

LINE 3

25-CIV-01884

GEORGINA KOCH, ET AL. VS. KILISTINA D FAKAHAUA PETELO, ET AL.

GEORGINA KOCH

GERALD H SCHER

KILISTINA D FAKAHAUA PETELO

---

MOTION FOR AN ORDER TO COMPAL PLAINTIFFS GEORGINA KOCH'S AND PENELOPE KOCH'S (A MINOR) BY AND THROUGH HER GUARDIAN AD LITEM, GEORGINA KOCH, RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET NO. ONE

**TENTATIVE RULING:**

Defendant Valco Cincinnati, Inc.'s Motion for an Order to Compel Plaintiffs Georgina Koch's and Penelope Koch's Further Responses Requests for Production, Set No. One, is GRANTED.

The party to whom an inspection demand is directed must provide a verified response within thirty days service. (Code Civ. Proc., § 2031.240, subd. (a), § 2031.260, subd. (a).) If a party to whom an inspection demand is directed fails to serve a timely response, the party waives all objections and the propounding party may move for an order compelling a response. (*Id.*, at § 2031.300, subds. (a), (b).)

On April 29, 2025, Defendant Valco Cincinnati, Inc. ("Valco") served its first sets, respectively, of inspection demands on Plaintiffs Georgina Koch and Penelope Koch. (Mar. 23, 2026 Motion to Compel Responses, pp. 8–79 ("Henry Decl."), ¶ 2, exh. A.) Neither have provided a timely response. (*Id.*, at ¶¶ 5, 9.)

Accordingly, the motion is GRANTED. Georgina Koch and Penelope Koch shall each serve a separate code-compliant response without objections to the first set of requests for production propounded to them, respectively, by Valco no later than twenty (20) days after service of written notice of entry of the formal order.

No sanctions were requested and thus none are awarded.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Defendant Valco Cincinnati, Inc. shall prepare, for the court's signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

---

2:00 PM

LINE 4

25-CIV-01884

GEORGINA KOCH, ET AL. VS. KILISTINA D FAKAHAUA PETELO, ET AL.

GEORGINA KOCH

GERALD H SCHER

KILISTINA D FAKAHAUA PETELO

---

MOTION FOR AN ORDER TO COMPEL PLAINTIFF GEORGINA KOCH'S FURTHER RESPONSES TO SPECIALLY PREPARED INTERROGATORIES, SET NO. ONE

**TENTATIVE RULING:**

Defendant Valco Cincinnati, Inc.'s Unopposed Motion for an Order to Compel Plaintiff Georgina Koch's Further Responses to Specially Prepared Interrogatories, Set No. One, is GRANTED.

If a party to whom interrogatories are directed fails to serve a timely response, the party waives all objections and the propounding party may move for an order compelling a response. (Code Civ. Proc., § 2030.290, subds. (a), (b).) When a response has been provided, a propounding party may move for an order compelling a further response if the party deems (1) an answer is evasive or incomplete; (2) a referral to documents is unwarranted or inadequate; or (3) an objection is without merit or too general. (*Id.*, at § 2030.300, subd. (a).)

On April 29, 2025, Defendant Valco Cincinnati, Inc. ("Valco") served its first set of specially prepared interrogatories on Plaintiff Georgina Koch (hereafter, "Georgina," as the plaintiffs in this matter share a surname, no disrespect is intended). (Mar. 23, 2026 Motion to Compel Further Responses, pp. 8–95 ("Henry Decl."), ¶ 2, exh. A.) Georgina failed to provide a timely response. (*Id.*, at ¶ 8.) Eventually, on December 23, 2025, Georgina served a verified response to 'special interrogatories.' (*Id.*, at exh. B.)

It is fairly obvious, however, that the special interrogatories to which Georgina responded were not the forty-one in the set propounded to her but the twenty-five in the separate set propounded to her co-plaintiff. The response sets out the (incorrect) text of each interrogatory purportedly being answered and fails to answer any interrogatories past the twenty-fifth. (See Henry Decl., exh. B; cf. *id.*, at exhs. A, C.) One might argue this response is not a response to the subject interrogatories at all, but at the very least, the response is not "as complete and straightforward as the information reasonably available to the responding party permits" (*id.*, at § 2030.220, subd. (a)) and therefore "evasive and incomplete" (*id.*, at § 2030.300, subd. (a)(1)). When matched with the real interrogatories, the answers to nos. 7–25 are non-sequiturs, and no answers were provided to nos. 26–41 at all.

Accordingly, the motion is GRANTED. Georgina shall serve a further, code-compliant response to the first set of special interrogatories propounded to her by Valco no later than twenty (20) days after service of written notice of entry of the formal order.

---

No sanctions were requested and thus none are awarded.

Additionally, the papers filed in support of the motion contain unredacted social security numbers in violation of in violation of rule 1.201(a) of the California Rules of Court. Valco is ordered to file a redacted copy of the motion that complies with the California Rules of Court no later than five (5) days after entry of the formal order. The clerk of the court is to place the original, unredacted copy under seal.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Defendant Valco Cincinnati, Inc. shall prepare, for the court's signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

---

2:00 PM

LINE 5

25-CLJ-05691

AMERICAN EXPRESS NATIONAL BANK VS YARON ASHER

AMERICAN EXPRESS NATIONAL BANK  
YARON ASHER

AARON N. BALDARO  
PRO SE

---

DEFENDANT'S MOTION FOR SANCTIONS FOR FRAUD ON THE COURT, FALSE PROOF OF SERVICE, MISCONDUCT BY PLAINTIFF'S COUNSEL AND PROCESS SERVER, AND DIRECT LIABILITY OF PLAINTIFF AMERICAN EXPRESS NATIONAL BANK

**TENTATIVE RULING:**

Defendant Aaron Yasher's ("Defendant") Motion for Sanction is DENIED.

***Procedural background***

Plaintiff American Express National Bank ("Plaintiff") filed this breach of contract action against Defendant on July 28, 2025. Thereafter, Defendant filed and served a Motion to Quash Service of Summons, a Motion to Strike the Proof of Service of the Summons and Related Filings, and a Motion to Dismiss the Complaint for Lack of Personal Jurisdiction. On March 3, 2026, the court denied Defendant's Motion to Quash and Motion to Strike, and it denied as moot Defendant's Motion to Dismiss.

On March 25, 2026, Defendant filed and served a Motion for Reconsideration of Order Denying Motion to Quash Service of Summons. Defendant's reconsideration motion argued that the process server, Stacey Soloman ("Soloman"), could not have served Defendant with the summons and complaint as stated in the proof of service. The court denied the reconsideration motion.

***Defendant's Motion for Sanctions***

Defendant now moves for sanctions pursuant to Code of Civil Procedure sections 128.5, 128.7, 128, subdivision (a)(4), and 177.5. Defendant once again argues that he could not have been served with the summons and complaint as claimed in the proof of service, and therefore he seeks sanctions based on a purported fraud by Soloman, Plaintiff's counsel and Plaintiff for the proof of service and opposition to Defendant's Motion to Quash.

***Code of Civil Procedure Sections 128.5 and 128.7***

Code of Civil Procedure section 128.5 authorizes the court to "order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." (Code Civ. Proc., § 128.5, subd. (a).) "Frivolous" is defined as "totally and

---

completely without merit or for the sole purpose of harassing an opposing party.” (*Id.*, at § 128.5, subd. (b)(2).)

Code of Civil Procedure section 128.7, subdivision (b), also allows the court to impose sanctions. Defendant seeks sanctions under the part of section 128.7 which provides that by presenting to the court a pleading, motion or other similar paper, an attorney is certifying that to the best of the person’s knowledge, information and belief, formed after an inquiry reasonable under the circumstances, “[t]he allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.” (Code Civ. Proc., § 128.7, subd. (b)(3).)

Section 128.5 requires showing a subjective bad faith in taking the frivolous action or tactic, whereas section 128.7 requires a court to find only that a party’s or attorney’s conduct is objectively unreasonable. (*In re Marriage of Sahafzadeh-Taeb & Taeb* (2019) 39 Cal.App.5th 124, 132-134.)

Defendant fails to establish that the filing of the proof of service of the summons and complaint and opposition to the Motion to Quash were objectively unreasonable. Soloman signed a declaration under penalty of perjury claiming personal service on Defendant and also provided a declaration to this effect. As the court found in denying Defendant’s Motion to Quash, a registered process server’s declaration of service establishes a presumption that the facts stated in the declaration are true. (Evid. Code, § 647.) Thus, Plaintiff’s reliance on Soloman’s declaration of service was not objectively unreasonable.

Likewise, Defendant fails to establish that sanctions are warranted under section 128.5 based on bad faith. Defendant has not proffered any evidence to support that these actions were taken by Plaintiff and/or Plaintiff’s counsel with subjective bad faith and were frivolous or solely intended to cause unnecessary delay. Further, *Peake v. Underwood* (2014) 227 Cal.App.4th 428, 448, does not support Defendant’s argument as it involved sanctions under section 128.7, not section 128.5.

***Code of Civil Procedure sections 128, subdivision (a)(4), and 177.5***

The court has the power to compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein. (Code Civ. Proc., § 128, subd. (a)(4).)

The court also has the power to impose reasonable monetary sanctions, not to exceed \$1,500, for any violation of a lawful court order by a person, done without good cause or substantial justification. (Code Civ. Proc., § 177.5.)

Defendant fails to show that Plaintiff and/or Plaintiff’s counsel violated a judgment, court order or process. As such, the court finds that sanctions are not warranted under these sections.

---

***Conclusion***

Defendant fails to establish that sanctions are warranted under any of these authorities. The request for sanctions and the related relief are therefore DENIED.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

---

2:00 PM

LINE 6

26-UDL-00037

MICHAEL GEMIGNANI VS. THOMAS LEBEAU, ET AL.

MICHAEL GEMIGNANI  
THOMAS LEBEAU

GRANT H. BAKER  
PRO SE

---

MOTION OF PLAINTIFF MICHAEL GEMIGNANI FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

**TENTATIVE RULING:**

Initially, the court notes that Plaintiff has not provided the address for the hearing. Department 4 is located at the Southern Courthouse, Courtroom 4C, 400 County Center, Redwood City, CA 94063. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice “must specify” the location of the hearing].)

The unopposed Motion for Leave to File First Amended Complaint (the “Motion”) brought by Plaintiff Michael Gemignani is DENIED without prejudice.

*The Motion Is Fatally Defective.*

Proofs of service must be filed five court days before the hearing. No proof of service of the moving papers appears in the Court’s records. Therefore, Defendants did not receive proper notice of the hearing date and the Court must deny the Motion for lack of jurisdiction. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-1205 [“the court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.” (citations omitted)]). Further:

[P]roof of service fulfills the function of establishing that “procedures implementing the constitutional requirements of due process were followed giving assurance that service really has been made.” Accordingly, when adequate proof of service is available, it is of no legal import that a party actually may not have received notice. That being the case, the courts are very strict in applying the statutory standards for proof of service; failure to strictly comply with those standards deprives the court of jurisdiction to act.

(*Oats v. Oats* (1983) 148 Cal.App.3d 416, 420 (internal citations omitted).)

*The Proposed First Amended Complaint Is Fatally Defective.*

Subject to any opposition credited by the court, the Court was prepared to grant the unopposed Motion once proper service on all parties were demonstrated, or Defendants were to indicate their lack of opposition to the Motion. In such case, if Plaintiff has properly served the Motion, Plaintiff would be properly to contest, file, serve, and email Department 4 by 10:00 a.m. on July 7, 2026, the documents showing proper service, or if Defendants were not to oppose the Motion, they would be to email Department 4 by 10:00 a.m. on July 7, 2026, that they do not contest the granting the Motion and waive notice, and Plaintiff would be to appear at the hearing. If one of these conditions were not to occur, then the Court would deny the motion without prejudice.

---



However since the motion is procedurally defective, the Court points out that there are substantive defects in the proposed First Amended Complaint which might not stop the motion to amend being granted, but would be subject to a demurrer being sustained and thus the Court denies the motion without prejudice. The proposed First Amended Complaint ("FAC") is defective, in that it fails to attach the indicated cause of action for breach of contract as required. (Proposed FAC, box 8, at Baker Decl., p.5, in Exh. A ("The following causes of action are attached and the statements above apply to each (*each complaint must have one or more causes of action attached*)" (emphasis in original)).)

Also, without exhibit markers, the FAC appears to attach not only the lease and its addenda, but also multiple pages regarding an insurance policy, which pages were not attached to the Complaint. (See Baker Decl., pp.17-32, in Proposed FAC, Exh. A.) These pages also appear at the end of Exhibit 1 to Plaintiff's Declaration, which is declared to show the lease. (See Gemignani Decl., ¶ 2, pp.15-30, in Exh. 1.)

For all of these reasons, the Motion is DENIED without prejudice.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

---



POSTED: 3:00 PM